TENTATIVE RULINGS

FOR: July 22, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom
Join by Video
https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1
Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom
Join by Video
https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1
Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to http://napacountybar.org/court-reporting-services/ for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

"Recording Court proceedings (whether by Zoom's AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. A will be heard in Dept. B Except as Specifically Noted Below****

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 9:30 a.m.

****at 9:30 a.m.****

Jane Doe v. Joseph Tolfree et al **23CV000759**

MOTION FOR CONTEMPT

TENTATIVE RULING: The motion, construed as a motion for an order to show cause, is GRANTED. Defendant Duffy's Napa Valley Rehab, LLC (Duffy's) is directed to serve Notice of Entry of Order on Plaintiff and on Brian Archer. Service on Brian Archer shall be made with the service of the Order to Show Cause re: Contempt discussed below.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Duffy's Napa Valley Rehab, LLC, (Duffy's) moves, pursuant to California Code of Civil Procedure sections 2025.480(k), 2023.030(b)-(c), and 2023.010(g), for an order holding non- party Brian Archer in contempt for willful disobedience of discovery rulings/orders issued by the Court-appointed Discovery Referee in this action.

Civil contempt proceedings "[are] brought under the provisions of sections 1209 through 1222 of the Code of Civil Procedure. Such a proceeding . . . 'is not a criminal action or proceeding. It is a special proceeding, criminal in character, governed by the provisions of the Code of Civil Procedure . . . not for the punishment of an offense against the state, but intended to implement the inherent power of the court to conduct the business of the court and enforce the lawful orders of the court." (*Pacific Tel. & Tel. Co. v. Super. Ct. for Los Angeles Co.* (1968) 265 Cal.App.2d 370, 371-372.

"The elements of proof necessary to support punishment for contempt are: (1) a valid court order, (2) the alleged contemnor's knowledge of the order, and (3) noncompliance." (See *Inland Counties Reg'l Ctr., Inc. v Super. Ct.* (2017) 10 CA5th 820, 827.)

The Court finds that Duffy's has made a showing, as to each element, sufficient to support the issuance of an order to show cause. (See Declaration of Alexander M. Farcas, exhibits attached thereto, and proof of service thereof on Brian Archer; see also April 8, 2026 Order of Referee Justice James Lambden (Ret.) (Discovery Referee) Granting Defendant's Motion to Compel Further Deposition of Brian Archer and April 8, 2026 Discovery Referee's Report of Orders After April 8, 2026, DMC, each filed with the Court on April 28, 2026.)

Plaintiff is directed to submit a proposed order to show cause (OSC) re: contempt that is directed to the accused and sets the hearing for August 28, 2026, at 8:30 a.m. in Dept. B. (See Code Civ. Proc. § 1212; see also *In re M.R.* (2013) 220 Cal.App.4th 49, 58.) Due process requires that the OSC provide adequate notice of the specific charges at issue in the contempt proceeding. (*Moore* *v. Super. Ct.* (2020) 57 Cal.App.5th 441, 456.) The Court notes that, upon entry by the Court, the OSC must be served on Mr. Archer in the same manner as a summons. (See Code Civ. Proc. §§ 1015, 1016 (statutory provisions for service of motions do not apply to service of any paper to bring a party into contempt); see also *Cedars-Sinai Imaging Medical Group v. Super. Ct.* (2000) 83 Cal.App.4th 1281, 1286-87 ["[u]nless the citee has concealed himself from the court, he must be personally served with the affidavit and the order to show cause; otherwise, the court lacks jurisdiction to proceed"].)

****at 9:30 a.m.****

Mark Andrews v. Richard Rockwell et al **24CV000304**

DEFENDANT ENTERPRISE RENT-A-CAR CO. OF SAN FRANCISCO, LLC'S MOTION TO STRIKE THE FIRST AMENDED COMPLAINT AND DEMURRER

TENTATIVE RULING: The Court has been informed that the parties stipulated to a continuance of the present matter to coincide with the pending *Ex Parte* Hearing in this matter. As such, the matter is CONTINUED to Friday, July 24, 2026, at 11:30 a.m. in Dept. A.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of George W Turner **25PR000048**

STATUS HEARING RE: FINAL DISTRIBUTION

APPEARANCE REQUIRED. There is no new Status Report on file. Petitioner is therefore directed to appear and update the Court on the status of the case.

Conservatorship of Joaquin Sebastian Reynaldo **25PR000065**

REVIEW – 1ST YEAR

TENTATIVE RULING: The matter is CONTINUED to August 19, 2026, at 8:30 a.m. in Dept. B to allow the Conservators to file: Care Plan (Judicial Council form GC-355/356). The Clerk is directed to send notice to the parties, along with a copy of this Minute Order.

Conservatorship of James R. Gill **25PR000132**

REVIEW – 1ST YEAR

TENTATIVE RULING: The Court sets the matter for an Accounting on September 02, 2026, at 8:30 a.m. in Dept. A. The Review – 1st Year is CONTINUED to September 02, 2026, at 8:30 a.m. in Dept. A to coincide with the Accounting.

This is a conservatorship of the person and estate. (See 7/22/25 Minute Order.) There is no accounting on file as required pursuant to Probate Code section 2620, subdivision (a). All accounting documents (or a Request for Waiver of Accounting, Form GC-410) must be filed at least 30 days prior to the next hearing. The Clerk is directed to send notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Edwin Vincent, A minor et al v. Fred William Gallegos et al **22CV000060**

CONFERENCE STATUS RE: STATUS OF SETTLEMENT DISTRIBUTION / MC-356

TENTATIVE RULING: The matter is CONTINUED to August 18, 2026, at 8:30 a.m. in Dept. A.

The Court is in receipt of the Declaration of Jacob Chobanian and the Amended Order Approving Compromise of Minor's Claim, filed July 17, 2026, requesting that the settlement proceeds of $8,663.87 be directly deposited with Father and Guardian Ad Litem, Richard Vincent, instead of depositing in a blocked account as originally ordered . The Court notes it has authority for the July 17 request under Probate Code section 3411, subdivision (d). While the Court finds that good cause exists for the request based on the Chobanian Declaration, the Court requires a declaration from Father, signed under penalty of perjury, with the information contained in Paragraph 4 of the Chobanian Declaration. Namely, Father's Declaration shall include the reason for the request and an acknowledgement of his duty to use the proceeds solely for the Minor's benefit. Once the Court receives Father's Declaration, it will sign the July 17 Amended Proposed Order. Father's Declaration shall be filed prior to the next hearing.

Jose Galvan v. Boardwalk Property Services, LLC et al **24CV001105**

COMPLIANCE HEARING

TENTATIVE RULING: The Court has reviewed the Declaration of Nicole Bench, filed 7/8/26, and is satisfied that the terms of the Order Approving the Parties' PAGA Settlement Agreement have been satisfied. The hearing is therefore VACATED.

Maria Consuelo Huerta De Mora v. Cintas Corporation No. 3 et al **25CV000955**

[1] MOTION BY DEFENDANT MARIA CALDERON FOR DETERMINATION OF GOOD FAITH SETTLEMENT

TENTATIVE RULING: The motion is GRANTED.

Defendant Maria Calderon ("Calderon") moves, pursuant to Code of Civil Procedure section 877.6, [1] for an order determining that the settlement agreement between Calderon and Plaintiff Maria Consuelo Huerta De Mora ("Plaintiff") is entered into in good faith.

"Any party to an action in which it is alleged that two or more parties are joint tortfeasors … shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors …." (§ 877.6, subd. (a)(1).)

"[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

However, a party objecting that a settlement lacks good faith has the burden of proving the issue. (§ 877.6.) In Opposition, Defendant Cintas Corporation No. 3 ("Cintas") argues that Calderon is 100% liable to Plaintiff and there is a strong presumption that Plaintiff and Calderon colluded, based solely on the fact that Plaintiff and Calderon share a mutual friend, Lupe Gonzalez.

The Court finds that Calderon has established the foregoing facts:

(1) Calderon does not dispute that her vehicle struck Cintas' vehicle, but a genuine dispute exists as to fault between all co-Defendants, as Calderon contends that, had Cintas not been speeding, the vehicles would not have collided. (Declaration of Adam K. Tanouye ("Tanouye Decl."), ¶ 3.)
(2) $15,000 represents the entirety of Defendant's only applicable insurance. (*Id.*, ¶ 15.)
(3) Calderon has been unemployed for more than five years, is on a fixed income derived from her limited lifetime earnings and social security income, has limited assets, does not have any retirement plan, stocks, bonds, etc., is unable to personally contribute to the settlement, does not own the property where she resides, and owns one vehicle (the one involved in the collision). (*Id.*, ¶ 18.)
(4) The total amount of Plaintiff's damages sought is $550,971.54; however, Plaintiff suggests that the amount incurred for her left knee should be eliminated therefrom, as Plaintiff has had a history of issues with her left knee. (*Id.*, ¶ 14.) Without the amount for her left knee, Plaintiff's damages come down to $47,306.58. Using the reduced amount, the settlement amount

[1] All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

of $15,000 is roughly 30% of Plaintiff's damages. Using the full amount of damages, Calderon is only paying approximately 3% of Plaintiff's damages.

(5) A mutual friend of Plaintiff and Calderon, Lupe Gonzalez, asked Calderon to take Plaintiff to her doctor's appointment on the date of the incident. Plaintiff and Calderon have not communicated since the accident. (Reply Declaration of Adam K. Tanouye ("Tanouye Decl."), ¶ 2, Exh. K.)

There is no precise yardstick for measuring "good faith" of a settlement with one of several tortfeasors. But it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the "reasonable range" (within the "ballpark") of the settling tortfeasor's share of liability for the plaintiff's injuries—taking into consideration the facts and circumstances of the particular case. (*Tech-Bilt, Inc., supra,* 38 Cal.3d at 499.) Thus, even a settlement that seems disproportionately low may be justified by showing that damages or liability are speculative; or that the settling defendant had no insurance or was underinsured or insolvent. (*Ibid.*)

Here, Calderon has offered a theory for the reduction of Plaintiff's total amount of damages sought. Moreover, Calderon has shown that the settlement is for the full amount of her insurance policy and that she is otherwise unable to pay. The Court finds Cintas' claim of collusion unsupported by the evidence. Calderon further submits evidence showing the nature of the parties' dispute as to all the defendants' liability. Cintas does not address Calderon's reduced damages theory or showing of relative insolvency. While neither Calderon's Memorandum nor Reply meaningfully discuss whether 30% (using the reduced theory of damages) or 3% (using Plaintiff's actual amount of damages sought) is a fair share of Calderon's culpability as compared to the other co-Defendants, the Court finds that the other *Tech-Bilt* factors outweigh any deficiency in Calderon's moving papers as to the proportionality factor.

While the general rule is that a court must consider a defendant's and co-defendants' proportionate liability so that the settlement figure is not grossly disproportionate thereto, "the court in *Tech–Bilt* acknowledged that the quoted rule is subject to an exception. Thus, the court noted that bad faith is not established merely by a showing that a settling defendant with limited ability to satisfy a judgment will pay less than his or her theoretical proportionate share: 'Such a rule would unduly discourage settlements. For the damages are often speculative, and the probability of legal liability therefor is often uncertain or remote. And even where the claimant's damages are obviously great, and the liability therefor certain, a disproportionately low settlement figure is often reasonable in the case of a relatively insolvent, and uninsured, or underinsured, joint tortfeasor.' [Citation.]" (*Schmid v. Sup. Ct.* (1988) 205 Cal.App.3d 1244, 1248.)

Even though no opposition was filed in *Schmid*, the Court finds the reasoning in *Schmid* equally applicable here. "The latter rule controls here. We can think of no earthly good that would come from requiring defendant [Calderon] to remain in the action. Good faith approval of the settlement would bar contribution or indemnity claims against [Calderon] by codefendant [Cintas]. [Citations.] … No evidence suggests that [Calderon] has any assets, or any prospect of acquiring assets, other than her insurance policy. Yet disapproval of the good faith of the settlement would doubtless require [Calderon] to continue her defense, possibly at the expense of her insurer, to avoid a judgment in excess of her policy limits that could require her to declare bankruptcy. [¶] We see no virtue in this. [¶] [Calderon's] continued defense would simply increase her defense costs (possibly producing an unnecessary ultimate boost in insurance premiums) and needlessly add to the work of all personnel of the court." (*Id.*, 1248-49.)

Given the exception to the *Tech-Bilt* rule discussed above, Cintas' request for further discovery from State Farm to determine that Calderon was fully at fault for the accident is DENIED.

Based on the foregoing, the Motion is DENIED.

[2] MOTION TO QUASH DEFENDANTS CINTAS CORPORATION NO. 3 AND SAM BROVELLI'S SUBPOENA FOR DEFENDANT MARIA CALDERON'S RECORD FROM STATE FARM MUTUAL INSURANCE COMPANY

TENTATIVE RULING: The motion is GRANTED.

Defendant Maria Calderon ("Calderon"") moves, pursuant to Code of Civil Procedure section 1987.1, subdivision (a), [2] for a protective order and/or an order quashing, modifying and/or limiting Defendants' Cintas Corporation No. 3 and Sam Brovellia (collectively, "Co-Defendants") subpoena ("Subpoena") for Calderon's records from State Farm Mutual Insurance Company ("State Farm") issued June 11, 2026.

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein…the court, upon motion reasonably made by [a party]…after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (§ 1987.1, subd. (a).) Pursuant to California's Civil Discovery Act, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action … if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (§ 2017.010.)

Here, the Subpoena requests "Any and all records and documents including, the entire insurance file from State Farm for the below policy, including but not limited to any payments, adjustments, valuation, and settlements related to the accident on June 2, 2023 at or near 1512 Trower Avenue, Napa, CA 94558." (Separate Statement, pp. 1-2.) "The information sought also includes documents and information concerning insurance, payments, and billing for services rendered." (*Id.*, p. 2.)

Co-Defendants argue the "documents are directly relevant and are necessary for [Co-Defendants] to defend themselves in this action, as they relate to Calderon's clear liability" and the "discovery is necessary for [Co-Defendants] to defend the claim, as it is expected that the

[2] All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

insurance file would include a determination that Calderon was at fault." (Opp., 2:8-9, 3:22-23.) Specifically, Co-Defendants argue that Calderon's State Farm insurance policy settled with both Co-Defendants by paying each $5,000 for Co-Defendants' personal injury and property damage claims, prior to Plaintiff bringing this action against Calderon and Co-Defendants. (Opp., 3:4-8.) Now, Co-Defendants seek the entire State Farm file, asserting that the documents therein are likely to show that State Farm found its insured, Calderon, to be liable.

As an initial matter, Co-Defendants fail to articulate *to whom* the documents will show Calderon's purported liability—i.e., whether the documents are purportedly relevant to show Calderon's liability *to Co-Defendants* or *to Plaintiff*. Based on the concurrently filed motion regarding Plaintiff and Calderon's good faith settlement, it would appear Co-Defendants seek these documents from State Farm to prove that Calderon is liable or at fault for *Plaintiff's* damages. However, the fact that State Farm settled with Co-Defendants regarding *Co-Defendants'* personal and property damage claims is not necessarily relevant to *Plaintiff*'s damages. Moreover, in light of the concurrent ruling on the good faith settlement motion, proof of Calderon's liability to Plaintiff appears moot. To the extent Co-Defendants contend the documents will prove Calderon's liability for Co-Defendants' damage, Co-Defendants fail to discuss the relevancy of that proof to the present action, nor does it appear relevant to the Court given that Co-Defendants have asserted that those liability issues have allegedly settled. Based on the foregoing, Co-Defendants have failed to sufficiently show the relevancy for the sought after documents.

Even assuming *arguendo* the documents are relevant, Co-Defendants have failed to show that their interest in disclosure outweighs Calderon's interest in privacy and privilege. Calderon argues that the insurance file includes "valuations" related to the subject accident, reports and documents reflecting the handling attorney's impressions, conclusions, opinions, and legal research related to the case, which is not discoverable under any circumstances, and confidential communications between Calderon and her counsel regarding settlements. (Separate Statement, 2:13-25.)

While insurance policies are generally discoverable in civil litigation, Co-Defendants' broad request for any and all documents, including the entire insurance file from State Farm, and specifically including payments, adjustments, valuation, and settlements related to the accident, combined with Co-Defendants' reason behind the Subpoena to prove Calderon's liability through State Farm's settlement of claims with Co-Defendants, is sure to include private settlement communications and privileged documents, to the extent they exist. Co-Defendants' assertions in Opposition that the Subpoena would not result in privileged documents and that it is narrowly and specifically tailored to relevant documents are conclusory and fail to meaningfully engage with Calderon's objections to the Subpoena or to acknowledge that the Subpoena expressly requests documents and records regarding "settlements."

In light of Co-Defendants' insufficient showing of relevance for the discovery, and Calderon's compelling showing of the possible invasion of her privacy and privilege interests in the discovery, the motion to quash is GRANTED.

MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Catherine D Holmes, David B Holmes and Emma Q H Singer move, pursuant to California Code of Civil Procedure 871.26, for an order: (1) Compelling Defendant FCA US LLC (FCA) to comply with Section 871.26 by producing documents described in subdivisions (h)(6)-(10), and (h)(12)-(13); and (2) Imposing monetary sanctions against FCA and its counsel of record in the amount of $2,500.00.[3]

The Court finds no merit in Plaintiffs' assertion that FCA is required to provide "written responses accompanied by verifications of defense counsel to the mandatory section 871.26(h) disclosures." (Support Memo at 6:20-21.) First, it is unclear what a "response" would be in the context of Section 871.26. As the statute provides for mandatory disclosures, there is no request, as with traditional discovery, requiring a response. More fundamentally, Section 871.26 does not mandate any statement of compliance. The lack of such a provision in the subject statute stands in contrast with the requirement of a verified declaration of compliance set forth in Section 2016.090, subdivision (a)(5). The Legislature was clearly capable of including such requirement in Section 871.26, but did not.

Plaintiffs' reliance on Section 2016.090, subdivision (a)(5), is misplaced. That statute mandates disclosure of a different universe of documents from Section 871.26. Plaintiffs do not, by the instant motion, suggest or support any suggestion that FCA failed to comply with the initial disclosure requirements of Section 2016.090.

Plaintiffs fail to produce evidence that FCA withheld any document that it was obligated to produce. The statement in counsel's declaration that "FCA US LLC has failed to provide complete and compliant disclosures as mandated by § 871.26(h)" is conclusory, vague, and abstract. (Declaration of Breana Rucker at ¶ 4.) Counsel, through her declaration, neither identifies any specific document or category of documents, nor contends that any document was withheld by FCA.

Through their Support Memo, Plaintiffs argue that FCA is required, by the mandates of Section 871.26, to perform certain specific database searches (see Support Memo at 7:21-9:22)

[3] All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

and that FCA has not produced certain types of documents. (see *id.* at 9:23-21:26.) These discussions are technical in nature and Plaintiffs' arguments rely on a host of factual assertions regarding computerized systems and databases. However, Plaintiffs provide no evidence in support of any of these technical assertions. And, as discussed above, Plaintiffs provide no evidence tending to show that FCA improperly withheld any document that falls within the described categories.

Through the Opposition, FCA presents evidence that it "served all of the documents required by [Section 871.26] with the exception of those confidential documents subject to protective order." (Declaration of Matthew M. Proudfoot at ¶ 7.) It appears uncontradicted, however, that FCA proposed terms for a stipulated protective order, aimed at protecting confidentiality, prior to the deadline for its disclosure. (See *id.* at ¶ 5.) Moreover, the Court takes Judicial Notice of the fact that it entered a stipulated protective order in the matter on July 7, 2026.

On Reply, Plaintiffs contend that "[Section] 871.26 does not allow a manufacturer to withhold documents on confidentiality grounds . . .." (*Id.* at 1:12-13.) "The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision's central concern." (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) The Court does not find that either the letter or spirit of the initial disclosure statute is violated by FCA's assertion of its right to privacy, and its reasonable and diligent efforts to obtain a protective order.

Plaintiffs then argue that a number of categories of documents are not confidential. (See Reply at 3:14, *et seq.*) Again, however, Plaintiffs failed, in support of their moving papers, to produce evidence that any specific documents within these categories were withheld by FCA.

Based on the foregoing, Plaintiffs motion to compel compliance with Section 871.26 is DENIED. For this reason, Plaintiffs request for monetary sanctions is also DENIED.